

Election (Offense and Punishment) Act, 2017

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Amending Act

1. Some Nepal Acts Amendment Act, 2075 2075.11.19

Act Number 24 of the year 2073

An Act Made to Amend and Consolidate the Prevailing Laws Relating to Election Offences and Punishment

Preamble: Whereas, it is desirable to amend and consolidate the prevailing laws relating to election offences and punishment to make elections free and fair,

The Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Election (Offences and Punishment) Act, 2073".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means the court pursuant to Section 41.

(b) "Monitor" means a monitor deployed by the Commission pursuant to the prevailing federal law to monitor whether election activities and the code of conduct are being implemented, and the term also includes a monitoring team or monitoring committee formed by the Commission for such monitoring.

(c) "Investigation Officer" means the investigation officer pursuant to Sub-section (1) of Section 39.

(d) "Commission" means the Election Commission pursuant to Article 244 of the Constitution.

(e) "Candidate" means a person whose name is included in the final list of candidates for any election pursuant to the prevailing federal law.

(f) "Election" means the election of the President, Vice-President, members of the Federal Parliament, members of the Provincial Assembly, and members of the local level held pursuant to the Constitution and the prevailing federal law, and the term also includes a by-election.

(g) "Election Officer" means the Chief Election Officer or Election Officer appointed by the Commission pursuant to the prevailing federal law, and the term also includes an Assistant Election Officer.

(h) "Election Period" means the period starting from one hundred and twenty days before the date of election until the final result of the election is published.

Provided that if the election date is announced with a period of less than one hundred and twenty days, the period from the date of such announcement until the final result of the election is published shall be deemed to be the election period.

(i) "Election Representative" means a representative of a candidate or political party designated by the candidate or political party for election purposes.

(j) "Constituency" means the constituency determined by the Election Constituency Delimitation Commission pursuant to Sub-article (1) of Article 286 of the Constitution for the election of members of the House of Representatives and members of the Provincial Assembly.

(k) "Voter" means a person whose name is included in the final voter list pursuant to the prevailing federal law.

(l) "Voter List" means the final voter list along with details of voters prepared by the Commission pursuant to the prevailing federal law.

(m) "Ballot Paper" means the ballot paper arranged for voting in an election, and the term also includes the ballot paper used in an electronic device or a digital ballot embedded in such device where voting is conducted through an electronic device.

(n) "Voter Identity Card" means the voter identity card issued to a voter pursuant to the prevailing federal law.

(o) "Presiding Officer" means the Presiding Officer appointed pursuant to the prevailing federal law for the purpose of election, and the term also includes an Assistant Presiding Officer.

(p) "Polling Station" means the polling station established pursuant to the prevailing federal law for the purpose of voting in an election, and the term also includes a sub-polling station.

(q) "Ballot Box" means the ballot box arranged by the Commission for keeping the marked ballot papers, and the term also includes an electronic device that records the vote cast through an electronic device.

(r) "Political Party" means a political party registered with the Commission pursuant to the prevailing federal law for election purposes.

(s) "Constitution" means the Constitution of Nepal. Chapter-2

Offences and Punishment Relating to Election Documents and Election Materials

3. Not to Submit Nomination Paper with False Details and Documents: (1) No person shall submit or cause to submit a nomination paper attaching false details or documents while filing candidacy.

(2) The Election Officer may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1). 4.

Not to Obstruct the Use of Election Materials: (1) No person shall snatch, loot, steal, take possession of, open, destroy, or in any manner obstruct or interfere with the use of ballot papers, ballot boxes, or other materials used or to be used in an election. (2) No person shall seize, spoil, or purchase a voter identity card with the intention of preventing a voter from voting. (3) No person shall, without the approval of the Presiding Officer, take out of the polling station or elsewhere any ballot paper, ballot box, or other materials used or to

be used in an election, so as to prevent their use in the election. (4) No person shall add, alter, correct, remove, tear, or in any manner spoil, damage, or destroy any election-related details, notices, lists, or any other documents pasted or caused to be pasted by employees involved in the election, or cause to do such acts. (5) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to two years or both. (6) A person who acts contrary to Sub-section (2) shall be liable to a fine of up to twenty-five thousand rupees or imprisonment for up to six months or both. (7) The Election Officer, Presiding Officer, or Monitor may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (3) or (4). 5. Not to Misuse Ballot Paper: (1) No person shall destroy a ballot paper, erase, scratch, correct, forge, spoil, or destroy the signature or stamp of the Election Officer or Presiding Officer affixed on the ballot paper, or any mark or sign printed on the ballot paper, or in any other manner damage or misuse a ballot paper, or cause to do so. (2) No person shall prepare fake ballot papers or transport such ballot papers. (3) No person shall buy or sell ballot papers. (4) No person shall keep with oneself a ballot paper bearing the official stamp or mark without voting, or take it outside the polling station. (5) A person who acts contrary to Sub-section (1), (2), or (3) shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to two years or both. (6) The Presiding Officer may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (4). 6.

Not to Give or Take Ballot Paper Unlawfully: (1) An Election Officer or an employee entrusted with the custody of ballot papers shall not give such ballot paper to any person other than the voter, whether or not cash, kind, service, or any other type of benefit is taken or agreed to be taken. (2) No person shall, by giving or agreeing to give cash, kind, or service, or by showing any kind of greed, or by using any kind of fear, terror, intimidation, or threat, or by using or not using any kind of force, unlawfully obtain or cause to obtain a ballot paper from any person for voting. (3) A person who acts contrary to Sub-section (1) or (2) shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to two years or both. Chapter-3 Offences and Punishment Relating to Voting and Counting of Votes 7. Not to Vote Without Right to Vote: (1) No person shall vote in any election without having the right to vote pursuant to the prevailing federal law. (2) No person shall, except as provided by the prevailing federal law, receive a ballot paper in the name of another voter or vote in the name of another. (3) The Presiding Officer may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1) or (2). 8. Not to Vote More Than Once: (1) No person shall vote more than once in the same election. (2) The Presiding Officer may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1). 9. Not to Disclose Vote: (1) After marking a ballot paper, no person shall show, display such ballot paper to anyone, or mark the vote outside the secret voting compartment, or in any manner disclose the manner of voting. (2) The Presiding Officer may impose a fine of up to fifteen thousand rupees on a person who acts contrary to Sub-section (1). (3) If a person acting contrary to Sub-section (1) has not deposited the ballot paper into the ballot box, the Presiding Officer shall keep such ballot paper in a separate envelope, mention the same detail on that envelope, seal it, prepare a memorandum, and keep it; and such ballot paper shall not be counted. 10. Not to Violate Voting Procedure: (1) No person shall, while voting, violate the prevailing federal law relating to voting or the procedure prescribed by the Commission. (2) The Presiding Officer may impose a fine of up to fifteen thousand rupees on a person who acts contrary to Sub-section (1). 11.

Not to Insert or Keep Any Object Other Than Ballot Paper: (1) No person shall insert or keep any object other than a ballot paper inside the ballot box. (2) The Presiding Officer may impose a fine of up to fifteen thousand rupees on a person who acts contrary to Sub-section (1). Provided that if an object or substance that can spoil or destroy the ballot paper is inserted or kept inside the ballot box, the punishment shall be as per Section 12. 12. Not to Spoil or Destroy Cast Ballot Papers: (1) No person shall spoil or destroy a ballot paper

cast by a voter into the ballot box, or insert or keep any object or substance inside the ballot box that can spoil or destroy the ballot paper, or where the vote is recorded through an electronic device or medium, remove such ballot paper or vote record, or make or use any mechanism, device, or electronic medium that can affect such vote record, or give such mechanism or device to any other person. (2) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to two years or both. 13. Not to Obstruct Voting: (1) No person shall block the entrance or path to prevent a voter from entering the polling place, or in any manner obstruct or cause obstruction to voting at the polling station. (2) The Presiding Officer or Monitor may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1). 14. Non-Nepali Citizen Not to Vote: (1) No non-Nepali citizen shall vote in an election. (2) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to one year or both. 15. Not to Unauthorisedly Enter the Counting Place: (1) No person other than a candidate, election representative, counting representative, or a person authorised by the Commission shall enter the counting place. (2) The Election Officer or Monitor may impose a fine of up to fifteen thousand rupees on a person who acts contrary to Sub-section (1). 16.

Not to Spoil or Damage Counting Materials: (1) No person shall, while counting of votes is in progress, snatch, loot, spoil, or in any manner damage a ballot box, ballot paper, or any other election documents by using or not using force, or take them out of the counting place without the permission of the Election Officer. (2) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to two years or both. 17. Not to Count Votes Wrongly: (1) An Election Officer or any employee involved in counting shall not refrain from counting a vote when there are reasonable grounds and reasons to believe that the vote is a valid vote, or count a vote when there are reasonable grounds and reasons to believe that the vote is not a valid vote. (2) An Election Officer or employee who acts contrary to Sub-section (1) shall be subject to action according to the law relating to his or her service conditions. 18. Not to Carry or Use Weapons: (1) No person other than security personnel deployed for security duties who may carry weapons as per the law shall carry, display, use, or cause to use any type of explosive substance, chemical or poisonous substance, or sticks, spears, khukuri, guns, pistols, or similar other weapons in or around the polling station or counting place. (2) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to two hundred thousand rupees or imprisonment for up to three years or both. 19. Not to Disturb Peace: (1) On the day of voting for an election, from three hours before the start of voting until the voting process is completed, no person shall disturb peace, create fear or terror, or disrupt the election environment by doing any of the following acts in the house, building, or place where the polling station is located, or in any private or public house, building, or land in the vicinity thereof, in a manner that obstructs voters or persons or employees involved in voting at the polling station, or cause to do such acts:- (a) Using sound systems, short message service (SMS), social networks, or similar other means, (b) Playing musical instruments, singing and dancing, holding public feasts, holding rallies, demonstrations, or any type of meeting or ceremony, or creating crowds or noise, or causing to do so. (2) The Presiding Officer or Monitor may impose a fine of up to fifty thousand rupees on a person who acts contrary to Sub-section (1). Chapter-4 Offences and Punishment Relating to Influencing the Election 20.

Not to Influence: (1) In the course of an election, a candidate, election representative, or any other person shall not, by doing any of the following acts, influence in any manner any candidate, voter, or any person concerned with or interested in any of them, or an Election Officer or employee involved in the election:- (a) Obstructing or causing obstruction, or detaining or causing detention, with the intention of preventing any person from filing candidacy, carrying out election propaganda as per the prevailing federal law relating to elections, or exercising the right to vote, (b) Displaying or using any type of weapon or explosive substance,

(c) Causing any type of damage, (d) Threatening, intimidating, or showing fear or terror, (e) Harming social prestige, socially boycotting, or threatening social boycott, (f) Showing any type of greed or financial lure, (g) Inciting or making promises on religious grounds. (2) While performing any election duty, an Election Officer, Presiding Officer, employee, office-bearer, monitor, security personnel, observer deployed by the Commission, journalist, or any institution shall not, except as provided by law, do or cause to do any act in favour of or against any candidate in the election. (3) A person who acts contrary to Clause (a) or (b) of Sub-section (1) shall be liable to a fine of up to two hundred thousand rupees or imprisonment for up to three years or both. (4) A person who acts contrary to Clause (c), (d), (e), (f), or (g) of Sub-section (1) or Sub-section (2) shall be liable to a fine of up to one hundred thousand rupees or imprisonment for up to two years or both. 21. Not to Give or Take Cash or Kind: (1) During the election period, a candidate, election representative, or any other person shall not give or agree to give cash or kind to any voter as a gift, prize, reward, donation, or gratuity, or organise a public feast, for the purpose of exercising or not exercising the voter's right to vote, or in return for exercising or not exercising the right to vote; and a voter shall not accept or agree to accept such cash or kind, or participate in a public feast for such purpose. (2) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to fifty thousand rupees or imprisonment for up to one year or both. Chapter-5 Offences and Punishment Relating to Election Propaganda 22.

Not to Propagate: (1) In the course of an election, a candidate, election representative, or any other person shall not, while carrying out or causing to carry out propaganda regarding the policies and programmes of a political party or candidate, propagate or cause to propagate with any of the following objectives:- (a) To affect or disrupt the independence, sovereignty, geographical integrity, national unity, independence, and self-respect of Nepal, (b) To affect or disrupt the sovereignty vested in the people, the state authority, or the competitive multi-party federal democratic republican system of governance, (c) To disrupt the good relations among any religions, castes, classes, regions, or communities, or to incite violent acts, or to create hatred or enmity on the basis of language, religion, community, or regionalism. (2) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to two hundred thousand rupees or imprisonment for up to three years or both. 23. Not to Defame Character: (1) A candidate, election representative, or any other person shall not, for the purpose of influencing the outcome of an election, in any manner defame or cause to defame the character of any candidate or a member of his or her family. (2) A person who acts contrary to Sub-section (1) shall be liable to a fine of up to fifty thousand rupees or imprisonment for up to one year or both. 24.

Other Acts Not to Be Done in Election Propaganda: (1) No person shall, for the purpose of election propaganda, print or cause to print, or use or cause to use any type of poster, wall writing, festoon, banner, or digital display, except for the distribution of ordinary pamphlets of the size and colour prescribed by the Commission. (2) For election propaganda, no pamphlet shall be pasted or caused to be pasted, or written or caused to be written, on any religious, archaeological, historical, government, public, or private building, monument, wall, or structure. (3) While preparing pamphlets pursuant to Sub-section (1) for election propaganda, they shall not be prepared without mentioning the name and address of the printing press that prints them and the name and address of the political party or person causing them to be printed. (4) Sound systems shall not be used for purposes other than meetings or gatherings held for election propaganda or for disseminating information for such meetings or gatherings. (5) No person shall call or organise a meeting, take out a procession, or shout slogans, or in any other manner carry out or cause to carry out propaganda, for or against any candidate or political party, with the intention of voting or not voting, from forty-eight hours before the day of voting until the counting of votes is completed. (6) A candidate, election representative, or any other person shall not carry out propaganda in a manner that adversely affects the dignity of the

Commission. (7) The Commission, Election Officer, or Monitor may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1), (2), (3), (4), (5), or (6). (8) If a political party, candidate, election representative, or any other person uses or causes to use pamphlets, posters, wall writings, festoons, banners, or digital displays contrary to Sub-section (1) or (2), the officer pursuant to Sub-section (7) shall confiscate such pamphlets, posters, wall writings, festoons, banners, or digital displays, and shall order that the place where such pamphlets, posters, wall writings, festoons, banners, or digital displays were used be restored to its original condition. (9) If a person fails to comply with the order pursuant to Sub-section (8), the officer pursuant to Sub-section (7) may impose an additional fine of up to twenty-five thousand rupees and recover the expenses incurred to restore the place where such pamphlets, posters, wall writings, festoons, banners, or digital displays were used. 25.

Not to Use Vehicles Improperly: (1) In the course of election propaganda, no political party, candidate, election representative, or any other person shall use or cause to use vehicles in excess of the number prescribed by the Commission, or other than those permitted by the Commission or Election Officer. (2) In the course of election propaganda, no political party, candidate, election representative, or any other person shall use or cause to use vehicles of the Government of Nepal, Provincial Government, local level, an institution owned by the Government of Nepal, Provincial Government, or local level, or any educational institution or non-governmental organisation. (3) No political party, candidate, election representative, or any other person shall hold or cause to hold a rally using any vehicle in the course of election propaganda. (4) The Commission, Election Officer, or Monitor may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1), (2), or (3). (5) If a political party, candidate, election representative, or any other person uses a vehicle contrary to Sub-section (1) or (2), amended by the Some Nepal Acts Amendment Act, 2075. the officer authorised to impose a fine pursuant to Sub-section (4) shall seize such vehicle for the entire election period, and if a vehicle pursuant to Sub-section (2) is used, the officer who allowed the use of such vehicle shall be subject to departmental action. 26. **Not to Use Government Employees and Public Property:** (1) In the course of election propaganda, no political party, candidate, election representative, person holding a public office, or any other person shall use or cause to use government employees and public property. Provided that this Sub-section shall not prevent the enjoyment of facilities obtained pursuant to the prevailing law. (2) The Election Officer, Presiding Officer, or Monitor may order a person acting contrary to Sub-section (1) to refrain from using or causing to use government employees and public property, and shall send a letter to the Commission for action against the political party, candidate, or person doing such act. (3) The Commission may impose a fine of up to fifty thousand rupees on a political party, candidate, or person who acts contrary to Sub-section (1). (4) If the property referred to in Sub-section (1) belongs to the Government of Nepal, Provincial Government, local level, or an institution owned by the Government of Nepal, Provincial Government, or local level, the officer who allowed the use of such property shall be subject to departmental action. Chapter-6 Offences and Punishment Relating to Income and Expenditure of Election Propaganda 27.

Not to Take Financial Assistance: (1) A political party, candidate, or election representative shall not take any type of financial assistance from a government or public body or a non-governmental organisation or institution in a manner contrary to the prevailing federal law for election propaganda. (2) The Commission may impose a fine of up to one hundred thousand rupees on the political party, candidate, or person taking financial assistance contrary to Sub-section (1), and on the concerned person of the non-governmental organisation giving such financial assistance. (3) The concerned officer of a government or public body giving financial assistance contrary to Sub-section (1) shall be subject to departmental action. (4) If any person takes financial assistance from the bodies pursuant to Sub-section (1), the Commission shall order such

amount to be deposited with the Commission within a specified time; and if the political party, candidate, or person fails to deposit such amount with the Commission, the Commission shall recover such amount as government arrears and impose a fine on such political party, candidate, or person equivalent to the same amount. 28. Not to Get Expenses Incurred by Others: (1) While incurring expenses on election propaganda, a political party or candidate shall not cause another person to incur expenses. Provided that incurring expenses through one's own election representative shall not be barred. (2) The Commission or Election Officer may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1). 29. Not to Incur Expenses Exceeding the Limit Set by the Commission: (1) A political party or candidate shall not incur or cause to incur expenses exceeding the limit of election expenses fixed pursuant to the prevailing federal law relating to elections for election propaganda. (2) The Commission may impose a fine equivalent to the expenses so incurred on a person who acts contrary to Sub-section (1). 30.

Not to Take Financial Assistance or Incur Expenses for Prohibited Acts: (1) A political party or candidate shall not take any type of financial assistance or incur or cause to incur expenses for doing or causing to do any act prohibited by this Act or the prevailing federal law relating to elections or the election code of conduct in the election propaganda campaign. (2) The Commission may impose a fine equivalent to the income or expenses so made on a political party or candidate who acts contrary to Sub-section (1). (3) The Commission may declare a candidate who does not pay the fine imposed pursuant to Sub-section (2) within six months disqualified from being a candidate in any election for a maximum of six years, effective immediately. 31. Details of Income and Expenditure Incurred on Election Propaganda to Be Submitted: (1) A political party or candidate shall submit details of income and expenditure incurred on election propaganda to the office specified by the Commission pursuant to the prevailing federal law. (2) The political party or candidate shall make public the details of income and expenditure pursuant to Sub-section (1) as specified by the Commission for the information of all concerned. (3) The Commission may impose a fine on a political party or candidate who does not submit the details pursuant to Sub-section (1) as per the prevailing federal law relating to the Election Commission. (4) The Commission may impose a fine of up to fifteen thousand rupees on a political party or candidate who does not make public the details pursuant to Sub-section (2), and order such details to be made public within a reasonable time. (5) The Commission may impose a fine of fifteen thousand rupees per occasion on a political party or candidate who does not make such details public within the time pursuant to Sub-section (4). Chapter-7 Other Offences and Punishment 32. Not to Give Recognition to False Document: (1) An Election Officer, Presiding Officer, or employee involved in the election shall not give recognition to any document, paper, record, or detail for a purpose provided by law when there are reasonable grounds and reasons to believe that such document, paper, or record is false. (2) An Election Officer, Presiding Officer, or employee who acts contrary to Sub-section (1) shall be subject to action according to the law relating to his or her service conditions. 33.

Not to Shirk Official Responsibility: (1) An Election Officer, Presiding Officer, employee involved in the election, security personnel, or monitor deployed by the Commission shall not shirk their official responsibility. (2) An Election Officer, Presiding Officer, employee, or security personnel who acts contrary to Sub-section (1) shall be subject to action according to the law relating to his or her service conditions. 34. Not to Breach Secrecy of Election: (1) An Election Officer, Presiding Officer, employee involved in the election, monitor, security personnel, and any person deployed, representing, or assisting in any election work pursuant to law shall not, except as provided by law, give, express, or disclose information obtained by them in relation to such work to any other person. (2) An Election Officer, Presiding Officer, employee involved in the election, security personnel, monitor, observer deployed by the Commission for the election, candidate or any of his or her representatives, voter, or other person shall not tell, write, or in any manner publish or cause to publish to

anyone whether any voter has voted or not, or which candidate a voter has voted for, or how many votes a candidate has received, or whether the ballot paper contains any mark or sign that can identify the voter, or any other matters. Provided that this Section shall not be deemed to prevent the Election Officer or an officer authorised by him or her from publicly informing the number of votes received by candidates in the course of counting, or from speaking, writing, or publishing based on such information. (3) The Commission, Election Officer, or Presiding Officer may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1) or (2). (4) Notwithstanding anything contained in Sub-section (3), if the act contrary to Sub-section (1) or (2) is done by an Election Officer, Presiding Officer, employee, or security personnel, he or she shall be subject to action according to the law relating to his or her service conditions. 35. Not to Do Other Acts Adversely Affecting the Election: (1) No person shall, in addition to the acts mentioned elsewhere in this Act, do or cause to do any other type of act that adversely affects election-related work. (2) The Commission, Election Officer, Presiding Officer, or Monitor may impose a fine of up to twenty-five thousand rupees on a person who acts contrary to Sub-section (1). 36.

Not to Attempt, Aid, or Abet: (1) No person shall attempt to do an act contrary to this Act, or aid or abet the commission of such offence. (2) A person who acts contrary to Sub-section (1) shall be liable to half the punishment prescribed for the offender. Chapter-8 Procedure for Imposing Fine and Departmental Action 37. Imposition of Fine: (1) When imposing a fine pursuant to this Act, the Commission, Election Officer, Presiding Officer, or Monitor shall impose the fine immediately based on the gravity of the offence. (2) After the amount of the fine imposed pursuant to Sub-section (1) is paid by the concerned person, a receipt for the same shall be given immediately. (3) A person dissatisfied with the fine imposed by the officer imposing fine pursuant to Sub-section (1) may appeal to the concerned High Court within thirty-five days. (4) If a person does not pay the fine pursuant to Sub-section (1), the officer imposing the fine shall hand over the person to the concerned police office for imprisonment as per the prevailing federal law for the amount of the fine. (5) If an officer has already fined a person once for the same offence under this Act, no other officer shall fine the person again for the same offence. (6) When an officer imposing a fine pursuant to this Section imposes a fine on any person, he or she shall immediately make public through communication media the details of the offence committed by such person and the fine imposed, for the information of the general public. 38. Departmental or Other Action: (1) In the case of an employee or security personnel liable to departmental action pursuant to this Act, the Commission may itself take departmental action or send a letter to the concerned authority for departmental action; and in the case of an office-bearer not subject to departmental action, the Commission shall send a letter to the concerned body for action according to the prevailing law. (2) The Commission shall immediately debar a person against whom action has been taken or who has been recommended for action pursuant to Sub-section (1) from election-related work. (3) If a recommendation for action is received pursuant to Sub-section (1), the concerned authority shall take action against such person within three months and inform the Commission thereof. (4) If the concerned authority fails to take action and inform the Commission pursuant to Sub-section (3), the Commission shall send a letter to the Government of Nepal for departmental action against that authority, and the contents of such letter shall be made public for the information of all. Chapter-9 Procedure for Investigation, Trial, and Disposal of Cases 39.

Investigation and Filing of Cases: (1) Investigation of the offences referred to in Sub-section (3) of Section 41 shall be conducted by an officer designated by the Commission by publishing a notice in the Nepal Gazette. (2) In the course of investigating a case pursuant to Sub-section (1), the Investigation Officer may, on the basis of sufficient evidence, order the concerned police office to arrest a person suspected of involvement in the offence pursuant to the prevailing law, and arrest such person. (3) If a person arrested pursuant to Sub-section (2) needs to be detained for investigation, the Investigation Officer shall present him or her

before the Court within twenty-four hours, excluding travel time, and shall detain him or her only after obtaining permission from the Court. (4) If permission to detain pursuant to Sub-section (3) is requested, the Court, considering whether the investigation is being conducted satisfactorily and the reasons requiring detention, may permit detention for up to a maximum of fifteen days, either at once or in stages, if it finds that the investigation is being conducted satisfactorily and there are sufficient grounds for detention. (5) It shall be the duty of the concerned police office to comply with the order given by the Investigation Officer pursuant to this Section. The Investigation Officer shall send a letter to the Commission for departmental action against a police employee who fails to comply with the order given in this manner, and such police employee shall be subject to departmental action. (6) If it appears that a case should be filed against a person pursuant to this Section, the Investigation Officer shall file the charge sheet in the Court within sixty days from the date of the commission of the offence.

Provided that if the defendant is in custody, if it appears that a case should be filed against such defendant, the charge sheet shall be filed within a maximum of fifteen days of the defendant being in custody.

(7) After the investigation is completed, the Investigation Officer shall submit the case file and evidence to the concerned Government Attorney for a decision on whether or not to file a case, along with his or her opinion, without exceeding the limitation period for filing the charge sheet in the Court.

(8) After receiving the case file pursuant to Sub-section (7), the Government Attorney shall decide whether or not to file a case and return the received case file without exceeding the limitation period for filing the case, if a case is to be filed.

(9) If a decision is made by the Government Attorney to file a case pursuant to Sub-section (8), after receiving such decision, the Investigation Officer shall prepare a charge sheet and file the case in the Court.

40. Government of Nepal to Be Plaintiff: The Government of Nepal shall be the plaintiff in cases relating to offences referred to in Sub-section (3) of Section 41.

41. Trial and Disposal of Cases: (1) The Constitutional Bench of the Supreme Court shall conduct the trial and disposal of cases under Chapter-10 relating to elections to the Federal Parliament and Provincial Assembly.

(2) The High Court of the concerned Province shall conduct the trial and disposal of cases under Chapter-10 relating to elections other than those to the Federal Parliament and Provincial Assembly.

(3) The trial and disposal of cases relating to offences punishable under Sub-section (5) and (6) of Section 4, Sub-section (5) of Section 5, Sub-section (3) of Section 6, Sub-section (2) of Section 12, Sub-section (2) of Section 14, Sub-section (2) of Section 16, Sub-section (2) of Section 18, Sub-section (3) and (4) of Section 20, Sub-section (2) of Section 21, Sub-section (2) of Section 22, and Sub-section (2) of Section 23, and cases relating to the attempt, aid, or abetment of such offences, shall be conducted by a court designated by the Government of Nepal in consultation with the Judicial Council by